

Enquiries to: Faiza Firoz
Consultant
Human Resources
Telephone: 07 2891 5910
Our Ref: K-CF24/3270

**Metro South
Health**

Logan and Beaudesert Health Service

Mr Cory Shepherd
Administration Officer
Switchboard Services
Logan Hospital

Dear Mr Shepherd

I refer to the letter from Ms Anne Coccetti, Executive Director, Logan and Beaudesert Health Service (**LBHS**), Metro South Health (**MSH**) dated 27 September 2024, in which she provided you with the opportunity to advise why MSH should not consider you have abandoned your employment as outlined under section 9.6 of the *Hospital and Health Service General Employees (Queensland Health) Award – State 2015 (the Award)*.

In Ms Coccetti's letter dated 27 September 2024, you were afforded a period of 7 days from the date of your receipt of that letter to provide a response as to why MSH should not consider you have abandoned your employment. I am now in receipt of your response, which was received by Human Resources, LBHS, MSH on 3 October 2024 (**Response**).

In accordance with section 31.2 of the MSH Human Resources Sub-Delegations Manual, I have been delegated the functions of the chief executive in relation to abandonment of employment matters.

I note you make the following submissions within your response:

- You confirmed your intention to return to work.
- You advised the "Industrial Relations Department" has notified MSH of your request for a review of WorkCover Queensland's decision to deny your Workers Compensation claim.
- You advised you have sent multiple pieces of correspondence to Ms Tammy Reece, Director, Health Information Management Service, Logan Hospital, MSH and Ms Chloe Taylor, Manager, Switchboard, Corporate Services, Logan Hospital, MSH that you need a break from 'her'.

I have given full and careful consideration of the reasons provided in your letter as to why I should not consider you have abandoned your employment. However, I do not accept you have provided reasonable grounds on the following basis:

- Your last day of attendance for a rostered shift was 3 June 2024. Subsequent to that, you accessed the following leave:
 - 7 June 2024 – Recreation leave in lieu of sick leave
 - 8 June 2024 – Sick leave and Recreation leave in lieu of sick leave
 - 9 June 2024 – Sick leave

ICARE² values



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- 10 June 2024 – Leave without pay
- 11 and 12 June 2024 – Bereavement leave
- You were then placed on Leave without pay as you stopped attending your rostered shifts and you did not request to access your own leave balances.
- Human Resources have sought information from Ms Reece and Ms Taylor with whom you asserted you had multiple instances of contact. Ms Reece and Ms Taylor have confirmed the last correspondence they have received from you was on 15 May 2024 and 21 June 2024 respectively. Given this, I do not accept that you have been in regular contact with your workplace since your approved leave ceased in June.
- While you assert in your response that you intend to return to work, you have opted to provide no information regarding your intended return date. Additionally, you have failed to request for any form of paid or unpaid leave for the duration of your unapproved absence.
- While MSH has received correspondence from the Office of Industrial Relations regarding your application to review the decision made by WorkCover Queensland to deny your Workers Compensation claim, this does not remove your obligation to continue to communicate with your line manager or your employer.
- Given Ms Taylor has not received any correspondence from you since 21 June 2024, it is evident that you have not requested any form of paid or unpaid leave, nor have you provided any medical certificates to support your ongoing absence from the workplace. Given this, it is clear that your absence is unapproved and unauthorised. Additionally, it is clear that you have failed to maintain contact with your line manager and employer.

Clause 9.6 (Abandonment of Employment) of the [Hospital and Health Services General Employees \(Queensland Health\) Award – State 2015](#), states in part *'The absence of an employee from work for a continuous period exceeding 3 working days without the consent of the employer and without notification to the employer will be prima facie evidence that the employee has abandoned their employment.'*

You have not attended work since 3 June 2024, you had approved leave until 12 June 2024, and have since been absent without approval. I acknowledge that between June 2024 and 19 September 2024 you were awaiting the outcome of your WorkCover claim; however, you have not provided any reasonable excuse for your absence, nor have you requested approved leave. Therefore, I consider you are absent from duty without approved leave and without reasonable excuse and have abandoned your employment.

Noting that between June 2024 and 19 September 2024 you were awaiting the outcome of a WorkCover claim, I am nominating your separation date as 20 September 2024.

Return of MSH property

You are required to return any MSH property you have in your possession including your identification card and uniforms. Please return all such property to Ms Firoz at Unit 4, 3-5 University Drive, Meadowbrook QLD, 413 within seven (7) calendar days of receipt of this letter.

Human Rights

I acknowledge that my decision determining you have abandoned your employment may impact and potentially limit your human rights including the right to take part in public life, right to privacy and the right to reputation, which extends to protect professional relationships and reputation.

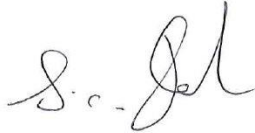
However, in my view, any limitation is demonstrably justified. This is because it is in the public interest in ensuring that employees comply with the Code of Conduct, and any employment legislation including for instance the Awards and Agreements relevant applicable to your

employment. I consider that this outweighs the limited potential impact on your human rights at this time.

Questions

If you have any questions in relation to the matters raised in this letter, please contact Ms Faiza Firoz, Consultant, Human Resources, LBHS, MSH on telephone (07) 2891 5910 or via email at LBH_HR@health.qld.gov.au.

Yours sincerely

A handwritten signature in black ink, appearing to read 'S. Johns'.

Steven Johns
A/Executive Director
Logan and Beaudesert Health Service
Metro South Health
8 / 10 / 2024